

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 04/21/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-01167
CASE NAME: BANK OF AMERICA N.A. VS. HEATHER OLEARY
*HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT
FILED BY: BANK OF AMERICA N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at the address which Defendant listed on her Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$8,760, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$5,295.

Costs are \$518.50.

Disposition

Plaintiff's Motion is **granted**. Judgment will be entered in the amount of \$7,521.08.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L23-01483

CASE NAME: TD BANK USA, N.A., AS SUCCESSOR IN INTEREST TO TARGET NATIONAL BANK VS. KATHRYN STRATTAN

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE SETTLEMENT AND RESTORE TO ACTIVE STATUS**

FILED BY: TD BANK USA, N.A., AS SUCCESSOR IN INTEREST TO TARGET NATIONAL BANK

TENTATIVE RULING:

Plaintiff filed a motion to set aside notice of settlement.

On 8/1/23, Plaintiff filed a Notice of Conditional Settlement, indicating that, upon the completion of particular conditions, the matter would be dismissed, and that Plaintiff would file a request for dismissal no later than 8/12/24.

No Request for dismissal was ever filed. Thus, it was never dismissed.

Disposition

The case remains active.

Plaintiff's Motion is moot and it will be dropped.

3. 9:00 AM CASE NUMBER: L23-02492

CASE NAME: CAPITAL ONE, N.A. VS. KENDALL AUSTIN

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.